



POLICE DEPARTMENT

December 4, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Pablo Rivera
Tax Registry No. 918227
71 Precinct
Disciplinary Case No. 2012-8388

The above-named member of the Department appeared before me on May 30, 2014, charged with the following:

1. Said Police Officer Pablo Rivera, assigned to the 60th Precinct, on or about August 4, 2012, while on-duty, did fail and neglect to instruct and assist a complainant in preparing page one of Complainant's Report of Lost or Stolen Property/Identity Theft (PD 313-1516).

P.G. Interim Order 31, P.G. 207-12, Page 1, Paragraph 3 REVISIONS TO
PATROL GUIDE 207-12, "LOST OR
STOLEN PROPERTY/IDENTITY THEFT"

2. Said Police Officer Pablo Rivera, assigned to the 60th Precinct, on or about August 4, 2012, while on-duty, failed and neglected to conduct a complete and thorough investigation into a larceny complaint.

P.G. 207-07, Page 1, Paragraph 2 – PRELIMINARY INVESTIGATION OF
COMPLAINTS (OTHER THAN VICE
RELATED OR NARCOTICS COMPLAINTS)

3. Said Police Officer Pablo Rivera, assigned to the 60th Precinct, on or about August 4, 2012, while on-duty, wrongfully engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Officer wrongfully used the radio code "93-C" (Complaint Report Prepared) to finalize an assignment.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT
PROHIBITED CONDUCT

The Department was represented by Marissa Gillespie, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 1 & 2. Respondent is found Not Guilty of Specification No. 3.

EVIDENCE PRESENTED

Witnesses

For Respondent's case, Respondent testified in his own behalf.

For the Department Advocate's case, Sergeant Nicholas Spataro, an investigator for the Department's Quality Assurance Division, testified.

The complainant, Person A, did not appear to testify. The Department Advocate spoke with Person A a week before trial. Person A told the Advocate that he stood by everything that he had told the Department's Quality Assurance Division in his two telephone interviews. Person A had found the experience with the Department unfortunate and frustrating. However, he had a busy work schedule and did not want to get further involved and ruin someone's career. Instead, the Department Advocate submitted the two hearsay statements made by Person A during his telephone interviews. (Department's Exhibit [DX] 1A & 1B).

Person A's failure to appear made it impossible to observe his testimonial demeanor and assess his credibility under cross-examination. In this case, however, much of Person A's hearsay statement and Respondent's testimony are consistent. Respondent's actions are not in dispute and the primary issue before this Court is whether, based on the information Respondent had at the time he conducted his investigation, Respondent's investigation was thorough.

Summary

This summary contains the facts about which both Respondent and the complainant agree and there is no dispute. Some of the background information in this summary was provided by the Department's investigator, Spataro.

On August 4, 2012, Respondent was assigned to the boardwalk post in the vicinity of Stillwell Avenue and Surf Avenue, which was part of the Coney Island Detail. At about 2:25 p.m., Respondent received a radio transmission of a 10-22 "past larceny." Respondent went to the scene of the larceny and requested the radio dispatcher call the complainant (later identified as Person A) back on his cell phone. The radio dispatcher told Respondent that two calls were made to Person A's cell phone, but the calls went to voicemail. He waited on the scene for several minutes, finalized the larceny job as 10-90X "unfounded," and continued to finish up his previous assignment.

About an hour later, while Respondent was returning to his post, Person A approached Respondent and told him that his wallet was taken. Person A was agitated and frustrated because he had been waiting for an hour since he had called 911.

Respondent accompanied Person A to the bodega. Person A told Respondent that someone stole his wallet. Person A explained that, while he purchased something from the bodega, he placed his wallet on top of the counter, next to the register, and walked away. When a homeless person asked him for money, Person A reached for his wallet and realized it was missing.

Before Respondent arrived at the bodega, the manager of the bodega had played the surveillance tape for Person A had taken a picture of a suspect from the video. Person A wanted Respondent to view the videotape but Respondent was unable to do so.

Person A told Respondent that there were credit cards and money in his wallet. Person A was not happy with Respondent's classifying the incident in the Complaint Report Worksheet (UF-61) as lost property and maintained that he saw a man take his wallet on the store's videotape.

A few days after this incident, Person A went to the precinct to obtain his complaint number. At the precinct he was told that his report did not exist. A police officer then took the report for him in the precinct. By this time, the surveillance tape of the incident had already been recorded over and the detectives were unable to obtain a copy.

Person A notified CBS News about the events of August 4, 2012. Deputy Commissioner of Strategic Initiatives was notified and assigned the case to the Quality Assurance Division (QAD) to investigate.

Not long after the incident, the credit cards which were in his wallet were sent to Person A, but he did not retrieve his wallet or the money and stamps that were in it.

Respondent's Investigation

This section summarizes Respondent's description of his investigation and his reasons for his actions. It also includes Respondent's reasons for not giving Person A the lost or stolen property form and Respondent's reasons for the final disposition he gave. Respondent testified that initially Person A told him that the suspect from the video took his wallet. But when Respondent asked Person A if Person A had actually seen the suspect take the wallet from the counter while they were in front of the cashiers, Person A said he did not see this. Person A told Respondent that it could have only been the person in the video who took the wallet because that person was standing behind him. While Respondent did not think that Person A lied about his claim, he testified, "[Person A] was just confused on when he lost the property, and not that someone took his property."

Person A showed Respondent a picture he took of the surveillance video. Respondent said the picture was a "very blurred image of a television screen." Respondent said he saw the back of the suspect's head and his vest. Although Person A provided Respondent with the description of the suspect's outfit, Respondent could not tell from Person A's picture what color clothes the suspect was wearing.

Respondent interviewed the two cashiers and both denied seeing the wallet on the counter. The cashiers also watched the videotape and "they did not see anyone remove a wallet from that tape from the counter."

Respondent notified Sergeant Hunt, who was already on the scene, that he was taking a Complaint Report (UF-61) for lost property. Respondent prepared a "scratch"¹ copy of a UF-61. Respondent took down Person A's pedigree information and a list of

¹ A scratch copy is a copy of a UF-61 that is completed and approved by a supervisor before it is entered into the Online Complaint System.

items that Person A said were taken. Respondent also noted on the UF-61 that a video camera was on the premises.

Respondent testified he did not have to call a supervisor to the scene because Sergeant Hunt was already on the scene. He did not have to call TARU or the detective squad, Respondent claimed, because a wallet was not taken.

Respondent was with Person A for about 20 minutes. During this time, Person A wanted Respondent to view the surveillance video. The cashiers were having trouble operating the surveillance equipment. Respondent asked the cashiers to find the manager who could play the video for him. Respondent also asked when the manager would return and for the manager's number so that he could call him. But, Respondent said, the cashiers just "gave me the run around."

Respondent remained in front of the bodega until the end of his tour, for about two or three hours. Respondent stated, "I wasn't purposely standing [in front of the bodega] to wait for the manager, but I figured if the manager was going to return, what better place can I be to be able to see the videotape. Right in front." Because Person A was adamant that there was something on the video, Respondent wanted to check the video himself. However, the manager did not return before the end of Respondent's tour and Respondent never watched the video.

Regarding Specification No. 1, Respondent testified that he told Person A that there was a second page to the UF-61, but that he did not have it with him; Respondent was referring to the Complainant's Report of Lost or Stolen Property/Identity Theft form (LSP). In order to prepare the reports for Person A, Respondent documented Moster's

pedigree information and a list of items that Person A alleged to have been stolen in his Activity Log. See DX 2. Respondent asked another police officer on his post for the LSP, but that officer also did not have one.

Respondent told Person A that since he did not have the LSP, he would prepare it for Person A and then print Person A's name on the LSP. He said, "at that point it wasn't going to be taken as someone stealing his wallet and he just yes'd me and he walked off."

Respondent explained that he did not radio a request for the LSP from other officers because, during the summer, the radio for the Coney Island detail is very busy. Respondent acknowledged that *Patrol Guide* 207-12 required him to instruct and assist Person A in preparing the LSP and that Person A was supposed to sign it.

Respondent stressed that although he did not direct the complainant to fill out the the appropriate form, the LSP was prepared. Respondent testified that when he finished his tour and came back to the precinct he turned in his scratch copy of the UF-61 and the LSP for Sergeant Hunt to review. After Hunt reviewed the reports, Sergeant Moran, who was also at the precinct, "signed off on the report and turned it in."

Regarding Specification No. 3, Respondent stated that he prepared a scratch UF-61 while he was on the scene. He gave a final disposition of 10-93C "complaint report prepared" and 10-93Q "additional report prepared" to the radio dispatcher. He explained that he gave a final disposition of 10-93C to put the radio dispatcher on notice that a report was taken at the scene, "not that it's already done." He did this because he intended to prepare [the LSP] but did not have it with him.

ANALYSIS

Specification Nos. 1 and 2

In Specification No. 1, Respondent is charged with failing to instruct and assist Person A in preparing page one of the LSP as required by *Patrol Guide* 207-12.

Respondent admitted that he did not assist and instruct in preparing page one of the LSP and that he did not direct Person A to sign the LSP. Therefore, he is found Guilty of Specification No. 1.

Specification No. 2 alleges that Respondent failed to conduct a complete and thorough investigation into a larceny complaint. This is the most serious charge against Respondent.

Respondent admitted that Person A told him that he saw a man take his wallet on the videotape.² But Respondent also maintained that Person A was confused and contradicted himself about whether he saw a person take his wallet. Person A may have told Respondent that he did not actually see the perpetrator take his wallet and only observed this on the videotape. However, because Person A failed to appear in court to clarify what he said, the Advocate could not demonstrate that Person A clearly articulated to Respondent why he believed his wallet was stolen. Thus, the Court credits Respondent's testimony that he believed that Person A was confused about whether he lost his wallet or it was stolen.

² In addition, both Person A's statement and the Department investigator's testimony confirmed that Person A told Respondent that he saw a man take his wallet on the videotape.

However, even if Respondent believed that Person A was confused, he knew that Person A had waited an hour to speak with him, that Person A was frustrated about waiting so long and was adamantly requesting the assistance of the police. He knew that Person A had credit cards in his wallet. He knew that Person A was unhappy that Respondent was not classifying this incident as a larceny. He knew that Person A was claiming that the videotape showed that the suspect took his wallet and that he wanted Respondent to view the videotape. Respondent also knew that viewing this videotape could illuminate whether Person A's wallet was stolen. Considering all these factors, Respondent should have treated this incident as a crime.

Moreover, the section of the LSP form which Respondent failed to give to Person A, as charged in Specification No. 1, was designed for complainants to explain in their own words what happened. It allows the complainant to claim whether the property was lost or stolen. (See PD 31-1516). Had Person A filled out this form, he would have had the opportunity to express that his wallet was stolen. Once Respondent saw that Person A was willing to sign his own name to the allegation that his property was stolen, there would no longer be any confusion about Person A's position. The complaint would then most likely have been handled by the Department as a larceny, which would have increased the chances of the videotape being viewed or preserved.

There are a number of steps that Respondent should have taken to address Person A's complaint. Once Person A told Respondent that he had a credit card in his wallet and believed it was stolen, Respondent should have upgraded the crime to Grand Larceny. When the cashiers were unable to play the videotape, Respondent could have requested that other members of the service respond to the scene to play the surveillance

video. He could have called his precinct desk officer to ask that a police officer with the appropriate technical skill be sent. If these requests failed, he could have asked TARU to respond to assist with viewing and securing the surveillance video. But whatever he did, Respondent should have made certain that the significance of playing and preserving the surveillance tape was relayed to the appropriate investigatory units.

Respondent's failure to play and secure the surveillance video was a serious omission in his obligation to conduct a thorough investigation and safeguard evidence under *Patrol Guide* Section 207-07. Therefore, Respondent is found Guilty of Specification No. 2.

Specification No. 3

In Specification No. 3 Respondent is charged with wrongfully using 10-93C to finalize his assignment.

Respondent was assigned to a foot post during the busy summer Coney Island detail. It is a practice of patrol police officers assigned to a foot post to take as much information as possible from complainants at the scene of certain incidents, and then, later in their tour, complete and submit the reports. Respondent documented PersonA's pedigree information and wrote down a detailed list of his belongings for the UF-61. Respondent marked his assignment as 10-93C to notify the radio dispatcher of his intention to prepare a report later in his tour.

Therefore, Respondent is found Not Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. *See Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 18, 1996. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department Advocate recommended a penalty of 10 vacation days for the misconduct alleged in three Specifications. The Court considers this penalty excessive for the following reasons.

Respondent has been found not guilty of Specification No. 3.

Although Respondent's investigation was not complete, Respondent still did conduct an investigation. Respondent interviewed the complainant. Respondent believed that Person A was confused and not certain where he had lost his wallet. Respondent questioned the cashiers, who told him that not only did they not see a wallet left on the counter, but they did not see the wallet taken when viewing the videotape. Respondent took steps to try to view the surveillance video and tried to find the manager to play the tape. Respondent posted himself in front of the bodega for about two or three hours and would have approached the manager to play the video if the manager had returned. Respondent notified Sergeant Hunt, who was at the scene, that he was taking a UF-61 for lost property. Respondent prepared the complaint report.

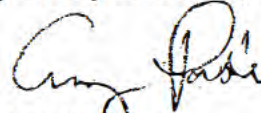
Based on what he learned during his investigation, Respondent concluded that Person A had lost his property. While his conclusion was based on a mistake in judgment

and that mistake resulted in the loss of evidence, Respondent did make genuine efforts to conduct what he believed was a thorough investigation.

In *Case No. 2012-8216* (April 18, 2014), a 10-year police officer with no prior disciplinary record forfeited five vacation days for failing to conduct a thorough investigation. In this case, Respondent has been a member of the Department for 18 years and has not been the subject of a prior formal disciplinary proceeding.

Considering Respondent's overall history with the Department, Respondent's efforts in conducting an investigation and recent case precedent, it is recommended that Respondent forfeit five vacation days.

Respectfully submitted,



Amy J. Porter

Assistant Deputy Commissioner Trials

APPROVED

JAN 29 2018

WILLIAM J. BRATTON
POLICE COMMISSIONER

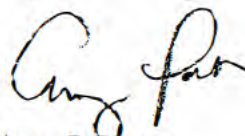
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER PABLO RIVERA
TAX REGISTRY NO. 918227
DISCIPLINARY CASE NO. 2012-8388

Respondent's last three annual evaluations were as follows: he received an overall rating of 3.5 "Highly Competent/Competent" in 2013 and 2012, and a 4.0 "Highly Competent" in 2011. He has one medal for Excellent Police Duty and one medal for Meritorious Police Duty. [REDACTED]

He has no prior formal disciplinary record.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner Trials